

Acme Industries Master Services Agreement (Long Form)

Article I — Definitions

Confidential Information means any non-public information disclosed by one party to the other in writing or orally that is designated as confidential. The receiving party shall use Confidential Information only for the Purpose. The parties acknowledge that the disclosure of Confidential Information may be required by law, regulation, or court order; in such cases the receiving party shall provide prompt written notice to the disclosing party so that the disclosing party may seek a protective order or other appropriate remedy. The receiving party shall reasonably cooperate in any such effort by the disclosing party.

Article II — Services

Vendor shall provide the services described in one or more Statements of Work executed by the parties. Each SOW shall set forth the scope, deliverables, timeline, and fees. The Vendor shall use commercially reasonable efforts to perform the Services in a professional and workmanlike manner consistent with industry standards.

Article III — Fees and Payment

Customer shall pay Vendor the fees set forth in each Statement of Work. Invoices shall be issued monthly and shall be due and payable within thirty (30) days of receipt. Any amounts not paid when due shall bear interest at the rate of one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is lower.

Article IV — Term and Termination

This Agreement shall commence on the Effective Date and shall continue for an initial term of three (3) years. Thereafter the Agreement shall automatically renew for successive one-year terms unless either party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term. Either party may terminate this Agreement for material breach upon thirty (30) days' written notice.

Section 5.1 — Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY OR INDEMNIFICATION OBLIGATIONS, NEITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL EXCEED THE FEES PAID BY CUSTOMER TO VENDOR IN THE

TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES.

Section 5.2 — Indemnification

Vendor shall indemnify, defend, and hold harmless Customer from any third-party claims arising out of Vendor's gross negligence or wilful misconduct, or any breach of Vendor's confidentiality obligations under Article I. Customer shall indemnify Vendor against any third-party claims arising from Customer's use of the Deliverables in violation of this Agreement.

Section 6.1 — Confidentiality

Each party shall hold the other party's Confidential Information in strict confidence and shall not disclose such information to any third party except as expressly permitted by this Agreement. The confidentiality obligations shall survive termination of this Agreement for a period of seven (7) years.

Schedule A — Fee Schedule

Hourly rates: Senior Partner \$850/hour, Partner \$625/hour, Senior Associate \$425/hour, Associate \$295/hour, Paralegal \$165/hour. Fixed fees for routine filings available on request.